

Multiple Choice (10 marks)

1. Neighbor says his home repair contract needs to be discharged because of frustration of purpose. Which of the following is not required for this to be discharged for this reason?
 - (a) A supervening event.
 - (b) That was reasonably foreseeable at time of contract formation.
 - (c) Which completely or almost completely destroys the purpose of the contract.
 - (d) The purpose of the contract was understood by both parties.
2. There is a grand jury proceeding underway for a local businessman. What is not true about grand jury proceedings?
 - (a) The proceedings are conducted in secret.
 - (b) There is no right to counsel.
 - (c) There is a right to Miranda warnings.
 - (d) There is no right to have evidence excluded.
3. There is a voting law that is going to be reviewed by the court. If the law is upheld, what must be true?
 - (a) The law is necessary to achieve a compelling government purpose.
 - (b) The law is substantially related to an important government purpose.
 - (c) The law is rationally related to a legitimate government purpose.
 - (d) The law is substantially related to a legitimate government purpose.
4. Where a client accepts the services of an attorney without an agreement concerning the amount of the fee, there is
 - (a) An implied-in-fact contract.
 - (b) An implied-in-law contract.
 - (c) An express contract.
 - (d) No contract.
5. Which of the following is not a correct form of real evidence?
 - (a) Weapons or implements
 - (b) marks, scars, wounds
 - (c) Photographs
 - (d) Hearsay

True / False (10 marks)

Answer True or False

6. True or False: A bill of attainder is a legislative act that inflicts punishment on individuals without a judicial trial.
7. True or False: A contract may be discharged for frustration of purpose without requiring that the supervening event was foreseeable at formation.
8. True or False: A defendant charged with first-degree murder is entitled to receive a list of prospective jurors upon request.
9. True or False: Partial performance of a contract does not terminate it by operation of law.
10. True or False: A discriminatory effect alone is sufficient to prove that the government intended to discriminate in its classification.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss how the enforcement provision of Section 2 of the Thirteenth Amendment can be used to justify Congress's recent statute prohibiting racial discrimination in real estate transactions.
12. Discuss the role of compensatory damages in contract law and analyze how they aim to restore the nonbreaching party to the position they would have been in had the contract been fully performed.

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